

9.	25CV3397	DANIEL RUSSELL VS. KIMBERLY THOMPSON ET AL
MOTION TO DISMISS – FAILURE TO AMEND COMPLAINT		

On June 9, 2026, Defendants, Kim Thompson and James Thompson (collectively “Defendants”), filed a Motion to Dismiss for Failure to Amend Complaint. A Proof of Service was filed on the same date.

Defendants assert that on March 27, 2026, this Court sustained Defendants’ demurrer with leave to amend. The Court ordered the amended complaint was to be filed within 10 days. Plaintiff was served with notice of the Order by mail on May 14, 2026. Per the Court’s order, the amendment deadline expired on May 29, 2026. To date, Plaintiff has not filed an amended complaint.

No opposition has been filed.

The Court may dismiss the complaint as to that defendant after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal. Code of Civil Procedure § 581(f)(2).

The Court finds that Plaintiff failed to timely file an amended complaint. Defendants’ motion to dismiss is granted with prejudice.

TENTATIVE RULING #9:

DEFENANTS’ MOTION TO DISMISS IS GRANTED WITH PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.